

STATE OF NEW YORK

9094--A

IN SENATE

February 3, 2026

Introduced by Sens. HARCKHAM, BYNOE, GONZALEZ, KRUEGER -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to prohibiting the use of the pesticide paraquat

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Legislative findings. 1. Paraquat or paraquat dichloride is
2 a synthetic, nonselective contact herbicide that is a member of the
3 bipyridylium chemical family and that kills all vegetation that it
4 touches.
- 5 2. Paraquat was first registered in the United States in 1964, and in
6 1978, the U.S. Environmental Protection Agency (EPA) classified all
7 paraquat products as restricted use pesticides because of paraquat's
8 high acute toxicity and potential for poisoning.
- 9 3. Paraquat has been classified as a restricted use pesticide, and 24
10 currently registered pesticide products approved for use in the United
11 States contain paraquat.
- 12 4. The Pesticide Action Network's 2024 Consolidated List of Banned
13 Pesticides identifies 72 countries as banning the use of paraquat,
14 including Brazil, China, Iraq, the United Kingdom, Malaysia, Peru, Saudi
15 Arabia, South Korea, Thailand, Turkey, Vietnam, and Zimbabwe.
- 16 5. The European Union banned paraquat in 2007 after a court determined
17 that the relevant regulatory body had failed to apply proper procedures
18 for evaluation of the herbicide and that the regulatory body was not
19 properly thorough in its assessments of paraquat's effects on human and
20 animal health.
- 21 6. As of January 9, 2026, there were no products registered for use in
22 Canada that contain paraquat.
- 23 7. Multiple studies have demonstrated that paraquat exposure substan-
24 tially increases the risk of Parkinson's disease in those exposed to the
25 herbicide.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD14468-04-6

1 8. Other studies suggest a possible link with exposure to paraquat to
2 increased risk of non-Hodgkin lymphoma, renal cancer, thyroid cancer,
3 and childhood leukemia.

4 9. In 2021, as part of a product registration review of paraquat
5 required under the Federal Insecticide, Fungicide, and Rodenticide Act
6 (FIFRA), the EPA issued an interim decision approving the continued
7 registration of paraquat for use in the United States, despite multiple
8 public comments objecting to approval and significant scientific
9 evidence regarding the potential health effects of paraquat exposure.

10 10. Multiple parties subsequently petitioned for judicial review of
11 the EPA's interim decision authorizing the continued registration and
12 use of paraquat. In particular, the challenging parties contested the
13 EPA's assessment of the increased risk of Parkinson's disease due to
14 exposure to paraquat from volatilization during use.

15 11. In January 2025, after a motion from the EPA, a court placed that
16 case in abeyance so that the EPA may reconsider its initial conclusion
17 concerning the potential for paraquat to volatilize and to determine
18 whether paraquat continues to meet FIFRA's registration standard.

19 12. The EPA's reevaluation of the risks of paraquat is expected to
20 take years, and the EPA's further evaluation does not prohibit the
21 continued use of paraquat during that review period.

22 13. Instead of waiting for EPA action on whether or how to use para-
23 quat, the state of New York should ban the use of paraquat in order to
24 protect New Yorkers from the known, significant health effects of expo-
25 sure to paraquat.

26 § 2. Section 33-1301 of the environmental conservation law is amended
27 by adding a new subdivision 14 to read as follows:

28 14. a. Beginning January first, two thousand twenty-eight, it shall be
29 unlawful for any person to distribute, sell, offer for sale or use any
30 pesticide containing the active ingredient paraquat dichloride or any
31 other chemical form of paraquat.

32 b. As used in this section, "paraquat" means a pesticide with CAS
33 number 4685-14-7 and any salt of that chemical, including methyl violo-
34 gen (CAS number 1910-42-5) and paraquat bismethylsulfate (CAS number
35 2074-50-2).

36 § 3. This act shall take effect immediately.